

Speaker 25

Part 15 Hearing on Draft Guidances Relating to the Regulation of
Human Cells, Tissues, and Cellular and Tissue-Based Products

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The views stated in this presentation are strictly my own, and do not represent the view of my employer or any client.

Draft Guidance on Minimal Manipulation

1. The concept of “main function” is entirely new, and not appropriately promulgated through guidance.
 - The term does not appear in 21 CFR Part 1271, or in any preamble to any proposed or final regulation.

Recommendation: FDA should introduce new regulatory concepts through notice and comment rulemaking.

Draft Guidance on Minimal Manipulation

2. The Guidance process does not afford stakeholders sufficient input into the classification of tissues as structural or non- structural.

Recommendation: FDA should develop a process to consider the input of industry and academia.

Draft Guidance on Minimal Manipulation

3. Draft Guidance ignores the reality that some human tissues have both structural and non-structural functionality in the donor.

The concept of multiple functionality is express in the regulatory definition of “homologous use,” which refers to “the same basic function or *functions* in the recipient as in the donor.”

Recommendation a: FDA should expressly acknowledge that some tissues have both structural and non-structural functionality.

Recommendation b: FDA should provide a scientific explanation of its backing away from prior conclusions that amniotic membrane has non-structural functionality in the donor.

Draft Guidance on Homologous Use

4. The use of the structural / non-structural distinction to limit homologous intended uses is new, and not appropriate for guidance.

The Draft Guidance on Homologous Use states:

- A homologous use for a structural tissue would generally be to perform a structural function in the recipient, for example, to physically support or serve as a barrier or conduit, or connect, cover, or cushion.
- A homologous use for a cellular or nonstructural tissue would generally be a metabolic or biochemical function in the recipient, such as, hematopoietic, immune, and endocrine functions.

This bifurcation is directly contrary to the regulations. FDA proposed, but **expressly chose not to implement**, a bifurcated definition of homologous use. See “Human Cells, Tissues, and Cellular and Tissue-Based Products; Establishment Registration and Listing” 66 FR 5447 at 5458 (January 19, 2001) : “We have . . . rewritten the definition of homologous use in response to the comments’ concerns. The new definition (codified at § 1271.3(c)) reads: “Homologous use means the replacement or supplementation of a recipient’s cells or tissues with an HCT/P that performs the same basic function or functions in the recipient as in the donor. The rewording **eliminates** the distinction between, on the one hand, structural tissues and, on the other, nonstructural tissues and cells.”

Recommendation: FDA should introduce new regulatory concepts through notice and comment rulemaking.

Inconsistent application of minimal manipulation

5. FDA has concluded that micronized bone is a Section 361 product when intended for use as bone void filler, even though micronization alters strength and compressibility of bone. Are strength and compressibility relevant to HCT/P utility as bone void filler?

FDA has concluded that micronized amniotic membrane is more than minimally manipulated when intended for anti-inflammatory, anti-scarring uses because tensile strength and elasticity altered. What is relevance of tensile strength and elasticity to anti-scarring, anti-inflammatory?

- Recommendation: FDA should provide scientific explanation for different application of minimal manipulation.

References

1. [Establishment Registration and Listing for Manufacturers of Human Cellular and Tissue-Based Products](#), Proposed Rule, May 14, 1998

[Establishment Registration and Listing for Manufacturers of Human Cellular and Tissue-Based Products](#), Final Rule, January 19, 2001
3. Letter to [Bio-Tissue Inc.](#), November 26, 2001
Untitled Letter to [OKTOS Surgical Corp.](#), June 23, 2005
4. [Draft Guidance on Homologous Use](#), October 2015, page 5